

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

April 13, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Brown. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON MARCH 31, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON APRIL 6, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers, seconded by Mr. Valdez. Upon inquiry regarding a voucher payable to CMS (\$1,404.00), annual physical exams for firefighters, and possible duplicate payment of an invoice, City Treasurer Barb Dorr stated she would review to ensure double payment is not issued. Upon query, Ms. Dorr reviewed two vouchers payable to Tafoya, (\$195.00/ea), and explained there are two different individuals on the listing with the last name of Tafoya, each provided youth basketball tournament officiating services. Motion carried. Voting "yes" – all members of the governing body present.

"AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING LOT 5, BLOCK 2, SEAVER'S SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED NORTHEAST OF HARMON AVENUE AND EVERTON DRIVE AND INCLUDING ADJACENT RIGHTS-OF-WAY HARMON AVENUE AND VICTORIA DRIVE)" -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION APPROVING TEMPORARY WATER SERVICE, BY USER'S AGREEMENT, INTERSTATE HIGHWAY CONSTRUCTION." Motion (per Consent Agenda) carried. (#5111)

[CA] "A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$850,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2010 SEWER MAIN REHABILITATION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF

PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5112)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$1.1 MILLION PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE CAREY AVENUE AND PIONEER AVENUE WATER AND SEWER MAIN REHABILITATION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5113)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$225,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE SEWER ROOT CONTROL AND CAMERA EQUIPMENT PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5114)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$3.2 MILLION LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE CROW CREEK ANOXIC BASIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5115)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$650,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2010 WATER MAIN REHABILITATION PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5116)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$400,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE WYDOT WEST LINCOLNWAY WATER MAIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5117)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$300,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2008 PHASE II WELL REHABILITATIONS PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5118)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$400,000 PRINCIPAL FORGIVENESS LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE FISCAL YEAR 2010 WATER WELLS UPGRADE PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5119)

[CA] “A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR THE PURPOSE OF RESTRUCTURING DRINKING WATER STATE REVOLVING FUND LOAN #079 FOR THE CITY OF CHEYENNE 30-INCH WATER TRANSMISSION MAIN PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Motion (per Consent Agenda) carried. (#5120)

“A RESOLUTION AUTHORIZING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A \$7 MILLION LOAN FROM THE STATE REVOLVING FUND FOR THE CITY OF CHEYENNE ADMINISTRATION/ENGINEERING AND WATER RESOURCES FACILITY PROJECT AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS.” Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Ms. Broyles. Comments followed regarding BOPU’s current debt for water and sewer systems, present economic environment, available vacant buildings located in the downtown area that could possibly house the facility, leasing vs. owning property, financial impact of contractors/employees constructing a new facility, and federal stimulus funds. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Collins and Dr. Rinne voting “no”. (#5121)

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE U.S. DEPARTMENT OF JUSTICE FOR THE COMMUNITY ORIENTED POLICING SERVICES HIRING RECOVERY PROGRAM TO BE USED TO HIRE THREE ADDITIONAL POLICE OFFICERS.” Motion (per Consent Agenda) carried. (#5122)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR TAK SUBDIVISION, 2ND FILING, A REPLAT OF A PORTION OF LOT 2, BLOCK ONE, TAK SUBDIVISION, CHEYENNE, WYOMING (LOCATED BETWEEN INTERSTATE 25 AND W. LINCOLNWAY, WEST OF THE I-25 OFF-RAMP)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CAPITOL COMMUNICATIONS SUBDIVISION, A REPLAT OF A PORTION OF LOTS 3 AND 10, AND ALL OF LOTS 4 THROUGH 9, BLOCK 653, STANFIELD ADDITION, CHEYENNE, WYOMING (LOCATED BETWEEN DEMING DRIVE AND THOMES AVENUE; AND W. 5TH AND 6TH STREETS)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR GATEWAY SOUTH, 2ND FILING, A REPLAT OF LOTS 1-6, BLOCK ONE AND LOTS 1-3, BLOCK TWO, GATEWAY SOUTH, AND THAT PORTION OF W. JEFFERSON ROAD DEDICATED WITHIN GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF W. FOX FARM ROAD AND WALTERSCHEID BOULEVARD)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED AS FOLLOWS: CAMPSTOOL ROAD COMMENCING AT COMMERCE CIRCLE, THENCE EASTERLY AND SOUTHERLY TO INTERSTATE 80, CHRISTENSEN ROAD COMMENCING AT CAMPSTOOL ROAD, THENCE NORTHERLY TO THE UNION PACIFIC RAILROAD, AND VENTURE DRIVE COMMENCING AT CAMPSTOOL ROAD, THENCE EASTERLY TO THE INTERSTATE 80 SERVICE ROAD, LARAMIE COUNTY, WYOMING” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION SUPPORTING THE PROPOSED PIONEER AMTRAK ROUTE THROUGH THE CITY OF CHEYENNE” -- referred to Public Services Committee (sponsor - Mr. Spiker).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF PROPERTY BEING DESCRIBED AS BEING SITUATED IN TRACTS 249, 250, 251, 252, SUNNYSIDE ADDITION 6TH FILING, EXCEPT NORTH 240 FEET THEREOF AND INCLUDING PORTIONS OF CHARLES AND ARTHUR STREET” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING DEPARTMENT OF TRANSPORTATION FOR A WYOMING RURAL PUBLIC TRANSPORTATION PROGRAM GRANT, FOR THE PURPOSE OF ASSISTING IN PROVIDING THE LOCAL MATCH FOR OPERATING FUNDS FOR THE CITY OF CHEYENNE FOR ITS TRANSIT PROGRAM, AS AUTHORIZED BY 49 U.S.C. §5311” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE, WYOMING TO LEND FUNDS TO THE PARKS & RECREATION DEPARTMENT TO COMPLETE THE CONSTRUCTION OF THE YOUTH ACTIVITY AND COMMUNITY CENTER IN THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK” -- referred to Finance Committee (sponsor - Ms. Broyles, Mr. Spiker and Mr. Valdez).

LEASES/CONTRACTS/LEGAL:

Lease Agreement between the City of Cheyenne and L and L, Inc., for the use of the Kingham Prairie View Clubhouse and the provision of golf services at the Kingham Prairie View Golf Course. Mr. Valdez moved to approve, seconded by Mr. Pierson. Upon inquiry regarding a cost analysis conducted in conjunction with the current vs. proposed lease agreement time frame,

Lois Huff, Deputy City Treasurer, explained historical financial information on L & L's revenues and expenditures she used in cost analysis computations, and projected time frame (11 years) it would take L & L to recoup its investments for improvements. Discussion included extension of the lease time frame to allow L & L an opportunity to recover improvements/investment costs, current agreement not expiring for 7 years and not extending the term until closer to the expiration date, factors involving L & L's revenues and expenditures for improvements, and rounds of golf played relative to revenue. Upon inquiry, Todd Feezer, Parks and Recreation Asst. Director, clarified golf (greens) fees are revenue for the City with L & L receiving revenue from golf shop sales, lessons, rental of golf carts, etc. In response to comments on revenues received from golf cart rentals, Mike Lepore, L & L, Inc., stated many of today's golfers are walking the courses, due to increased physical fitness awareness, instead of renting carts. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Collins voting "no". (#5362)

Professional Services Agreement between the City of Cheyenne and L and L, Inc., for the provision of golf services at the Airport Golf Course. Mr. Valdez moved to approve, seconded by Ms. Broyles. Comment was made that this item is similar to the previous agenda item involving the lease agreement for Kingham Prairie View Golf Course, except this agreement involves golf services at the Airport Golf Course. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Collins voting "no". (#5363)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Josh Cossitt, Tennis Professional, to provide tennis instruction services for the 2009 season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Girls Softball Association, to provide concession services for the 2009, 2010, and 2011 softball seasons at Converse Softball Complex and Brimmer Softball Complex -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department, Laramie County, Wyoming, for the housing of city prisoners at the Laramie County Detention Center -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Department, and Laramie County School District Number 1, to provide transportation services for the REC Camp Program -- referred to Finance Committee.

[CA] Real Estate Purchase and Sale Agreement between the City of Cheyenne, Parks & Recreation Department, and BNSF Railway Company, for the sale of approximately 18.4 acres of land north of UPRR near College Drive (2003 1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks & Recreation Department, and SeeHear Media, for exclusive rights to sell: dasher boards, Zamboni, scoreboards, indoor restroom poster and banner advertising, at the Taco John's Events Center -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 4 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation for additional work for the Norris Viaduct Project. (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$336,179.20). (#5280) Under other City business, Ms. Broyles inquired about landscaping in conjunction with the project with Mayor Kaysen advising action had already been taken on the item and suggesting she direct her inquiry to staff at her convenience.

[CA] Contract Modification No. 1 to Contract No. 5056 between the City of Cheyenne, Sanitation Department, and Magic City Enterprises, for sorting, processing, and marketing of recyclable materials -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5321 between the City of Cheyenne and RECCO Inc., d/b/a Five-R-Co., to allow for Phase II Construction of the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park to commence -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5127 between the City of Cheyenne and Wyoming Department of Transportation to include use of American Recovery and Reinvestment Act of 2009 (ARRA) Federal Funds for the I-180 Project -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-21-09 for a contract between the City of Cheyenne and S&S Builders, LLC, for the Dell Range Blvd., and Marble Ave. Signal Installations Project (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$199,750.00). (#5364)

[CA] Consideration of Bid #R-22-09 for the purchase of one new flail mower with a 21 foot mowing width for the Street & Alley Dept. (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried (Honnen Equipment Co., Mills, WY, amount not to exceed \$48,388.00).

[CA] Authorization to purchase two restroom facilities under a GSA Contract for Cahill Park and Sun Valley Park (SLIB Funding). Motion (per Consent Agenda) carried (CST Precast Concrete Products of Spokane, WA - Cahill Park, \$122,187.49, Sun Valley Park, \$46,006.32, total bid amount not to exceed \$168,193.81).

[CA] Consideration of Bid #R-24-09 for furnishing 12 New 2009 Ford Crown Victoria Vehicles with Police Package, from Fremont Motors, Lander, WY, for the Police Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-25-09 for furnishing and installing misc. police vehicle equipment from Wireless Advanced Communications, Inc., Evans, CO, for the Police Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Designation of official voting delegate and alternate delegate for the City of Cheyenne at the 2009 Wyoming Association of Municipalities Annual Convention -- referred to Public Services Committee.

Announcement was made of the appointments of Douglas G. Vetter as City Engineer and Matthew J. Ashby as City Planning Services Director for the City of Cheyenne, to be confirmed April 27, 2009.

Announcement was made of the appointment of Gale Shenefelt to the Mayor's Council for People with Disabilities, to be confirmed April 27, 2009.

Announcement was made of a Public Hearing to be held April 27, 2009, at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for Sandra J. Inniss d/b/a 2 Doors Down, 118 E 17th St., Cheyenne, WY.

Announcement was made of a Public Hearing to be held April 27, 2009, at 6:00 p.m. in City Council Chambers on the 2009-2010 Annual Action Plan for the City of Cheyenne Community Development Block Grant (CDBG) Entitlement.

Announcement was made of a Special Meeting of the Finance Committee to be held Tuesday, April 14, 2009 at 12:00 p.m. in Committee Room 122 for review of Contract Modification No. 1 to Contract No. 5127 between the City of Cheyenne and Wyoming Department of Transportation to include use of American Recovery and Reinvestment Act of 2009 (ARRA) Federal Funds for the I-180 Project.

Announcement was made of a Special Session of the Governing Body to be held Tuesday, April 14, 2009 at 12:15 p.m. in City Council Chambers for Contract Modification No. 1 to Contract No. 5127 between the City of Cheyenne and Wyoming Department of Transportation to include use of American Recovery and Reinvestment Act of 2009 (ARRA) Federal Funds for the I-180 Project.

OTHER CITY BUSINESS:

John Fafoutakis commended the U.S. Navy Seal Team in its recent rescue of the captain whose ship had been hijacked by pirates near Somalia.

City Attorney Dan White requested the governing body meet in executive session to discuss matters involving pending litigation. Mr. Collins moved to meet in executive session, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen announced the motion carried and members would meet in executive session in Council Chambers, not open to the public, following a 10 minute recess; that there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting will be officially concluded at the close of the executive session. (Clerk's Note: Executive session began at 6:43 p.m.)

There being no further business to come before the governing body prior to executive session, the meeting was officially adjourned at 7:43 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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